

## # INDEPENDENT SALES CONTRACTOR AGREEMENT

This Independent Sales Contractor Agreement (the "Agreement") is made on the date of last signature below.

### ## 1. Parties

Company  
TradeStock Marketplace  
Website: tradestockmarketplace.com  
Ireland  
("TradeStock" or the "Company")

and

Contractor  
Orrie Doran  
Gorey, County Wexford, Ireland  
("Contractor")

TradeStock and the Contractor are together referred to as the "Parties" and each a "Party".

### ## 2. Purpose and Background

2.1 TradeStock Marketplace is a private business-to-business dealership marketplace through which verified car dealerships and lease companies across Ireland and the United Kingdom may buy and sell, directly with each other:

- trade-in vehicles;
- ex-lease vehicles;
- surplus stock; and
- stock not selling on forecourts.

2.2 Dealerships and lease companies subscribe to access the platform and trade with each other.

2.3 The Contractor is engaged on a self-employed, independent contractor basis to promote and sell TradeStock subscriptions to suitable car dealerships and lease companies in Ireland and the United Kingdom.

### ## 3. Independent Contractor Status (No Employment)

3.1 The Parties expressly agree that this Agreement creates a contract for services only. It does not create a contract of employment, worker relationship, agency (save as expressly limited), partnership, joint venture, or any relationship of employer and employee.

3.2 The Contractor is and shall remain fully self-employed and in business on his own account.

3.3 For clarity, the Contractor is not entitled to employment rights or benefits from TradeStock, including (without limitation):

- PAYE treatment by TradeStock;
- holiday pay;
- pension contributions;
- sick pay;
- minimum notice under employment legislation (except as set out in this Agreement);

- redundancy pay; or
- any other employee or worker entitlement.

3.4 There is no guarantee of minimum work, minimum sales, or minimum income under this Agreement.

3.5 The engagement is non-exclusive. The Contractor may provide services to other clients and businesses, provided this does not breach confidentiality, data protection, or any other term of this Agreement.

3.6 Subject to compliance with this Agreement, the Contractor controls his own working hours, schedule, methods, and place of work.

3.7 The Contractor shall provide and maintain, at his own cost, his own phone, laptop, transport, internet access, and all other equipment and resources required to perform the services.

3.8 The Contractor is responsible for all expenses incurred by him unless TradeStock agrees in writing, in advance, to reimburse a specific expense.

3.9 The Contractor is solely responsible for all tax and statutory obligations arising from payments under this Agreement, including (as applicable) income tax, VAT, PRSI, USC, and all filing/payment obligations with the Revenue Commissioners or any other relevant authority.

3.10 The Contractor shall indemnify and keep indemnified TradeStock against any liability, cost, claim, penalty, interest, or expense arising from any failure by the Contractor to comply with Clause 3.9.

#### ## 4. Appointment and Scope of Services

4.1 TradeStock appoints the Contractor, and the Contractor accepts appointment, to market and promote TradeStock subscriptions and to support onboarding of prospective subscribing dealerships and lease companies.

4.2 The Contractor's duties include:

- identifying suitable dealerships and lease companies;
- contacting prospects;
- presenting and explaining TradeStock's offering;
- answering general pre-sales questions;
- helping prospects through onboarding;
- sending the account-creation link provided by TradeStock;
- maintaining prospect engagement during signup; and
- encouraging successful subscription completion.

4.3 The Contractor shall at all times conduct himself professionally and in a manner that protects TradeStock's reputation.

4.4 The Contractor has no authority to bind TradeStock and must not:

- enter into any agreement on TradeStock's behalf;
- vary or negotiate pricing except as expressly authorised in writing;
- make promises, warranties, representations, or commitments outside TradeStock's approved offering;
- represent himself as an employee, officer, director, or authorised signatory of TradeStock.

## ## 5. Subscription Pricing

5.1 As at the Effective Date, the standard subscription offered under this Agreement is:

- ?49.99 per month, with a
- 7-day free trial.

5.2 TradeStock may amend subscription pricing, offers, or commercial terms at its discretion on written notice to the Contractor. Any updated terms apply prospectively.

## ## 6. Commission on Qualifying Initial Signups

6.1 Subject to this Agreement, the Contractor shall be paid ?25.00 commission for each qualifying initial subscription signup at the ?49.99 monthly subscription level.

6.2 A signup qualifies only where all of the following are met:

- the dealership/lease company successfully creates an account;
- valid subscription/payment setup is successfully completed;
- the account is accepted/approved by TradeStock; and
- the signup is genuine, valid, and not fraudulent.

6.3 Commission under this Clause 6 is once-off only and is payable only for the initial qualifying signup.

6.4 No commission is payable for duplicate, cancelled, refunded, invalid, fraudulent, or rejected signups.

## ## 7. Volume Bonus

7.1 The Contractor is eligible for a ?1,000.00 bonus for each completed block of 100 qualifying subscribers personally onboarded by the Contractor.

7.2 This bonus is paid once only per completed block of 100 and does not accrue on a partial block.

7.3 TradeStock's records shall determine qualifying totals acting reasonably and in good faith.

7.4 Fraudulent, duplicate, invalid, cancelled, or refunded signups are excluded from qualifying totals.

## ## 8. Retention Bonus

8.1 Subject to this Agreement, the Contractor is eligible for a ?25.00 retention bonus for each qualifying customer originally onboarded by the Contractor for every completed 90-day period.

8.2 A retention bonus is payable only where, for the relevant completed 90-day period:

- the subscriber remains active on the platform;
- the subscription is paid and current;
- the account was originally onboarded by the Contractor; and
- the account is not refunded, fraudulent, invalid, or cancelled.

8.3 Retention bonuses are paid only after completion of each relevant 90-day cycle and completion of TradeStock's verification.

## ## 9. Records, Invoicing and Payment

9.1 The Contractor shall invoice monthly in arrears after month-end.

9.2 Each invoice must include, at minimum:

- customer name;
- signup date;
- commission amounts claimed; and
- bonus amounts claimed.

9.3 TradeStock may review and verify claims before approving payment.

9.4 Approved sums are payable within 5 days after the end of the relevant month, subject to receipt of a valid invoice and any information reasonably required for verification.

9.5 TradeStock may withhold, set off, or adjust disputed or non-qualifying items pending investigation and resolution.

## ## 10. Term and Termination

10.1 This Agreement commences on the date of last signature and continues until terminated in accordance with this Clause 10.

10.2 Either Party may terminate this Agreement at any time by written notice to the other Party.

10.3 TradeStock may terminate this Agreement immediately by written notice for cause, including:

- misconduct;
- fraud or attempted fraud;
- reputational harm or conduct likely to cause reputational harm;
- material breach of this Agreement;
- misuse of data or confidential information; or
- false claims for commission/bonus or other dishonest conduct.

10.4 On termination (for any reason):

- no future retention bonus or future commission shall accrue after the termination date;
- the Contractor has no ownership rights in any customer account, customer relationship, or platform data;
- the Contractor has no entitlement to future revenue from any customer;
- only commissions/bonuses already earned, approved, and unpaid as at termination remain payable (subject to this Agreement);
- TradeStock may withhold payment of any amount reasonably suspected to be non-qualifying, invalid, fraudulent, or otherwise in breach pending investigation.

10.5 Clauses intended to survive termination (including confidentiality, data protection, restrictive covenant, liability, and governing law) shall survive.

## ## 11. Confidentiality

11.1 The Contractor shall keep strictly confidential and shall not use (except for performing services under this Agreement) or disclose to any third party any Confidential Information.

11.2 Confidential Information includes (without limitation): customer lists, pricing strategy, internal systems, platform information, trade/commercial information, business methods, and any non-public information relating to TradeStock or its customers.

11.3 The confidentiality obligations in this Clause survive termination of this Agreement indefinitely, save to the extent disclosure is required by law.

## ## 12. Data Protection

12.1 Each Party shall comply with applicable data protection law, including the Data Protection Act 2018 and the EU General Data Protection Regulation (Regulation (EU) 2016/679) ("GDPR").

12.2 The Contractor shall:

- handle prospect and customer data responsibly and securely;
- use such data only for TradeStock sales/onboarding activity authorised under this Agreement;
- not copy, scrape, share, sell, or repurpose customer/prospect lists or personal data for unauthorised purposes;
- promptly notify TradeStock of any actual or suspected data breach relating to TradeStock data.

## ## 13. Post-Termination Non-Solicitation

13.1 For 12 months after termination of this Agreement, the Contractor shall not, in the Republic of Ireland or the United Kingdom, deliberately solicit any active TradeStock customer (with whom the Contractor had material dealings during the 12 months before termination) to cease or materially reduce business with TradeStock, where such solicitation uses or relies on TradeStock Confidential Information.

13.2 This clause is intended to be reasonable and no wider than necessary to protect TradeStock's legitimate business interests.

## ## 14. Liability and Responsibility

14.1 The Contractor is responsible for his own acts, omissions, statements, and conduct in performing services.

14.2 TradeStock is not liable for:

- the Contractor's tax, VAT, PRSI, USC, or other statutory obligations;
- the Contractor's business overheads or expenses; or
- the Contractor's independent business losses.

14.3 Nothing in this Agreement limits or excludes liability that cannot lawfully be limited or excluded under applicable law.

## ## 15. General

15.1 No Assignment by Contractor: The Contractor may not assign, transfer, or subcontract his rights or obligations under this Agreement without TradeStock's prior written consent.

15.2 Entire Agreement: This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes prior discussions or understandings.

15.3 Variation: Any variation must be in writing and signed by both Parties.

15.4 Severability: If any provision is held invalid or unenforceable, the remaining provisions remain in full force.

15.5 Notices: Notices under this Agreement shall be in writing (including email) to the contact details notified by each Party.

15.6 Counterparts and E-Signature: This Agreement may be signed in counterparts and by electronic signature, each of which shall be deemed an original.

## ## 16. Governing Law and Jurisdiction

16.1 This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it shall be governed by the laws of the Republic of Ireland.

16.2 The courts of the Republic of Ireland shall have exclusive jurisdiction, subject to any mandatory consumer or statutory rights (if applicable).

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## ## 17. Signatures

Signed for and on behalf of TradeStock Marketplace:

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Signed by the Contractor:

Orrie Doran

Signature: \_\_\_\_\_

Date: \_\_\_\_\_